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Case Number: 26NNCV01552 Hearing Date: July 17, 2026 Dept: T

Louis E. Fisher vs.

Mark Allen

Demurrer

to Plaintiff's Complaint

Moving Party: Defendant

Mark Allen

Responding Party: Plaintiff

Louis E. Fisher

Tentative Ruling: Sustain

BACKGROUND

On

March 4, 2026, Plaintiff Louis E. Fisher ("Plaintiff") filed a complaint against Defendant Mark Allen ("Defendant") and Does 1 through 100, alleging the following causes of action: (1) breach of contract; (2) fraud; (3) negligent misrepresentation; and (4) theft.

Defendant demurs to the complaint and each cause of action therein.

Plaintiff opposes, and Defendant replies. The Court

exercises its discretion to consider Plaintiff's untimely opposition. (Cal. Rules of Court, rule 3.1300(d).)

MOVING

PARTY POSITION

Defendant

argues that all of Plaintiff's causes of action are time barred based on the alleged fact that the parties entered into an agreement around 2014 and that, based on the allegations, any breach of the agreement would have occurred no later than approximately 2015, thus rendering any causes of action arising from this agreement barred under the applicable statutes of limitations.

Defendant

further argues that the complaint and each of the causes of action therein are subject to demurrer because it relies entirely on conclusory allegations rather than pleading facts that establish each cause of action.

Defendant

finally argues that the complaint is subject to demurrer because it is uncertain, ambiguous, and unintelligible based on the lack of factual allegations regarding the underlying agreement and events from which Plaintiff's claims arise.

OPPOSITION

Plaintiff

contends that the complaint states sufficient facts to constitute a cause of action for breach of contract, including the existence of a contract, Plaintiff's performance, Defendant's breach, and the resulting damages.

Plaintiff

contends that the complaint states sufficient facts to constitute a cause of action for conversion based on Defendant's wrongful retention and disposition of the motor vehicles and cash consideration provided by Plaintiff.

Plaintiff

finally contends that any defects in the complaint can be cured by amendment.

REPLY

Defendant

responds that Plaintiff's extrinsic evidence does not cure the defects found on the face of the complaint and that the statute of limitations bar is incurable.

ANALYSIS

I. Legal

Standard

A. Demurrer

A demurrer is a pleading used to test the legal sufficiency of other pleadings. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading (complaint, answer or cross-complaint). (Code Civ. Proc. §§ 422.10, 589; see, also, *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) It is not the function of the demurrer to challenge the truthfulness of the complaint; and for purposes of the ruling on the demurrer, all facts pleaded in the complaint are assumed to be true. (*Donabedian*, supra, 116 Cal.App.4th at p. 994.)

The general rule is that the plaintiff need only allege ultimate facts, not evidentiary facts. (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550.) "All that is required of a plaintiff, as a matter of pleading, even as against a special demurrer, is that his complaint set forth the essential facts of the case with reasonable precision and with sufficient particularity to acquaint the defendant with the nature, source and extent of his cause of action." (*Rannard v. Lockheed Aircraft Corp.* (1945) 26 Cal.2d 149, 156-157.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (*Id.*; *Lewis v. YouTube, LLC* (2015) 244 Cal.App.4th 118, 226.) However, "[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend." (*Youngman v. Nevada Irrigation Dist.* (1969) 70 Cal.2d 240, 245.)

II. Meet and Confer

Per the declaration of Defendant's counsel

Brynna D. Popka, counsel for the parties failed to meet and confer by telephone despite defense counsel's efforts to schedule this conference prior to the filing of the instant demurrer. (Popka Decl.

¶¶ 5–9.) Nevertheless, even if these meet and confer efforts were found by the Court to be insufficient, “[a] determination by the court that the meet and confer process was insufficient shall not be grounds to overrule or sustain a demurrer.” (Code Civ. Proc. § 430.41, subd. (a)(4).)

III. Discussion

A. Demurrer

“In order for the bar of the statute of limitations to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows merely that the action may be barred.” (E-Fab, Inc. v. Accountants, Inc. Services (2007) 153 Cal.App.4th 1308, 1315-1316 [quoting McMahon v. Republic Van & Storage Co., Inc. (1963) 59 Cal.2d 871, 874].) Although the statute of limitations is generally raised as an affirmative defense by a defendant, “when a plaintiff relies on the discovery rule or allegations of fraudulent concealment, as excuses for an apparently belated filing of a complaint, the burden of pleading and proving belated discovery of a cause of action falls on the plaintiff.” (Czajkowski v. Haskell & White, LLP (2012) 208 Cal.App.4th 166, 174, internal quotes omitted [quoting Investors Equity Life Holding Co. v. Schmidt (2011) 195 Cal.App.4th 1519, 1533]; April Enterprises, Inc. v. KTTV (1983) 147 Cal.App.3d 805, 83, internal quotes omitted [“It is plaintiff's burden to establish facts showing that he was not negligent in failing to make the discovery sooner and that he had no actual or presumptive knowledge of facts sufficient to put him on inquiry.”].)

“More specifically, to overcome an apparent limitations bar, the plaintiff claiming delayed discovery of the facts constituting the cause of action has the burden of setting forth pleaded facts to show (1) the time and manner of discovery and (2) the inability to have made

earlier discovery despite reasonable diligence. The burden is on the plaintiff to show diligence, and conclusory allegations will not withstand demurrer.” (Czajkowski, supra, 208 Cal.App.4th at p. 175, internal quotes omitted [quoting E-Fab, supra, 153 Cal.App.4th at p. 1324].) “When a plaintiff reasonably should have discovered facts for purposes of the accrual of a case [sic] of action or application of the delayed discovery rule is generally a question of fact, properly decided as a matter of law only if the evidence (or, in this case, the allegations in the complaint and facts properly subject to judicial notice) can support only one reasonable conclusion.” (Broberg v. The Guardian Life Ins. Co. of America (2009) 171 Cal.App.4th 912, 921.)

Here, Plaintiff alleges that, in or about the year of 2014, he entered into a written agreement with Defendant to purchase a 1949 Vincent Shadow “C” motorcycle. (Compl. ¶¶ 6–7.) At the time of the purchase, the subject motorcycle was disassembled and needed repairs. (Ibid.) As part of the agreement, Defendant was to restore the subject motorcycle and deliver it to Plaintiff in “working condition” within one year. (Id. ¶ 7.) Pursuant to the agreement, Defendant sold the motorcycle to Plaintiff for \$200,000, and Plaintiff completed this purchase by paying \$69,000 in cash and delivering collectable vehicles to Defendant valued at \$131,000. (Id. ¶¶ 7–8.) In addition, if Plaintiff decided to sell the restored motorcycle at auction, resulting in a sale price lower than \$200,000, Defendant allegedly agreed to refund Plaintiff the difference between the sale price and \$200,000. (Id. ¶ 7.) On December 12, 2025, after years of correspondence between the parties regarding the status of this repair, Plaintiff took possession of the subject motorcycle, which was disassembled. (Id. ¶ 9.) Plaintiff then took the motorcycle to another restoration company, which allegedly would charge Plaintiff more than \$20,000 to restore the motorcycle; fully restored, the motorcycle would allegedly be worth \$200,000. (Ibid.)

Given these alleged facts, the Court finds that the complaint on its face discloses only the reasonable conclusion that Plaintiff’s breach of contract cause of action is time-barred. (Id. ¶ 11.) Specifically, the statute of limitations on

an action for a breach of contract cause of action is four years for a written contract, which Plaintiff alleges existed between the parties. (Code Civ. Proc. § 337, subd. (a).) As “[t]he limitations period commences when the cause of action accrues,” (E-Fab, Inc., supra, 153 Cal.App.4th at p. 1317, internal citation omitted.), and as “[a] contract cause of action does not accrue until the contract has been breached,” (Spear v. California State Auto. Assn. (1992) 2 Cal.4th 1035, 1042), Defendant’s alleged failure to timely repair and provide the restored motorcycle within one year of the 2014 purchase began the accrual of the limitations period for Plaintiff’s breach of contract cause of action. (Compl. ¶¶ 7, 11.) Because the complaint was not filed until March 4, 2026, years after the limitations period for this cause of action would have elapsed, the Court finds that this defect clearly and affirmatively appears on the face of the complaint. Accordingly, as Plaintiff bears the burden of pleading facts to overcome this facially apparent defect, and as Plaintiff failed to set forth any such facts in his complaint, the factual allegations in the complaint only support the reasonable conclusion that this cause of action is time-barred.

Furthermore, as the gravamen of Plaintiff’s fraud, negligent misrepresentation, and theft causes of action arise from the same alleged conduct underlying Plaintiff’s breach of contract cause of action, including Defendant’s failure to timely repair and deliver the subject motorcycle within one year of the purchase, the application of this limitations period to these causes of action reveals the same apparent defect. (Compl. ¶¶ 13–26; City of Vista v. Robert Thomas Securities, Inc. (2000) 84 Cal.App.4th 882, 889 [“The statute of limitations that applies to an action is governed by the gravamen of the complaint, not the cause of action pled.”]; see, e.g., Carter v. Prime Healthcare Paradise Valley LLC (2011) 198 Cal.App.4th 396, 412 [applying the gravamen analysis to the limitations period for a willful misconduct cause of action in determining that the trial court properly sustained a demurrer without leave to amend on the basis of statute of limitations].)

Therefore, as Plaintiff failed to show any reasonable possibility of staying a good cause of action against Defendant by pleading facts that would overcome the statute of limitations defects, the demurrer to each of Plaintiff’s causes of action is sustained without leave to amend.

RULING

Defendant

Mark Allen's Demurrer to Plaintiff 's Complaint is SUSTAINED without leave to amend.